EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 60814/10
Zviad DZIDZIGURI
against Georgia

The European Court of Human Rights (Fourth Section), sitting on 30 June 2015 as a Committee composed of:

Paul Mahoney, *President,*
Nona Tsotsoria,
Faris Vehabović, *judges,*

and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above application lodged on 3 September 2010,

Having regard to the parties' letter of 24 March 2015,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicant, Mr Zviad Dzidziguri, is a Georgian national, who was born in 1964 and lives in Tbilisi. He was represented before the Court by Mr M. Sturua, a lawyer practising in Tbilisi.

2. The Georgian Government ("the Government") were represented by their Agent, Mr L. Meskhoradze, of the Ministry of Justice.

3. The facts of the case, as submitted by the parties, may be summarised as follows.

4. At the material of the events in question, the applicant was one of the leaders of the political forces in opposition to the then ruling party.

5. Between early April and June 2009, thousands of opposition supporters held street protests in various parts of Tbilisi, as well as in a few other major cities of the country, on a daily basis, demanding resignation of President Saakashvili and his government. During that period, there were several incidents when the police used allegedly excessive force against demonstrators.

6. One of such incidents occurred in the evening of 6 May 2009, during a spontaneous protest which gathered hundreds of people, including the applicant, in front of the main police station of Tbilisi. A situation escalated when one of the protesters climbed over the fence into the police compound, and, in reply, the riot police officers, who had been mobilised to protect the territory of the city's police headquarter, started firing from non-lethal riot guns into the crowd. As a result, many protesters, including the applicant, received bodily injuries of different gravity.

7. As disclosed by medical certificates available in the case files, the applicant was hospitalised on the same day, 6 May 2009, with bleeding from an open but not profound skin lesion on his forehead and was diagnosed a head injury resulting in light concussion.

8. On 8 June 2009 the applicant requested the initiation of criminal proceedings for excessive use of force by the police during the dispersal of the demonstration on 9 May 2009.

9. Between July 2009 and March 2010, the applicant enquired about progress of the criminal investigation on a number of regular occasions, requesting, amongst other things, to be interviewed in relation to the incident of 9 May 2009, granted the status of victim and so on.

10. On 26 March 2010 the Tbilisi City prosecutor's office acknowledged receipt of the applicants' enquiries and advised him, on the latter date, to apply to the Ministry of the Interior who appeared to be the authority in charge of the investigation.

11. On 12 April 2010 the applicant complained both to the Ministry of Justice, the agency supervising the prosecution authority at that time, and the Ministry of the Interior that it was unlawful for the latter authority to conduct an investigation into a possible abuse of power committed by its own agents, the riot police officers. No reaction followed.

12. Following the parliamentary election in the country in October 2012, the political coalition of which the applicant was a member came to power. Currently, the applicant holds the post of Deputy Speaker of Parliament of Georgia.

THE LAW

13. On 27 October 2014 the application was communicated to the Government under Articles 3 and 11 of the Convention.

14. By a letter of 24 March 2015, both the applicant, who emphasised that he currently occupied a high-ranking political position in the country (see paragraph 12 above), and the Government informed the Court that they had settled the case between themselves. To that effect, they submitted, for

the Court's approval, a mutually signed declaration which contained the exact terms of their settlement.

15. Notably, the applicant agreed to waive all his claims against the respondent State in respect of the facts giving rise to his application against the Government's acknowledgement of the violations of his rights under Articles 3 and 11 of the Convention "on account of shortcomings identified in the course of the investigation into the applicant's injuries allegedly sustained on 6 May 2009". To remedy the above-mentioned breaches of the Convention, the Government undertook to assign the investigation of the incident of 6 May 2009 to "an independent investigative body (outside the system of the Ministry of the Interior)" and otherwise to ensure "effective investigation of the applicant's allegations under close scrutiny of a competent high-ranking public prosecutor and in full compliance with the principles established by the Court".

16. In addition, the Government declared that they would pay 300 (three hundred) Euros to the applicant to cover costs and expenses associated with the fees of services of his lawyer, which sum will be converted into the respondent State's national currency at the rate applicable on the date of payment and free of any taxes that might be applicable to the applicant. The sum is payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay the sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

17. The parties agreed that the fulfilment of the above-mentioned conditions will constitute a final resolution of the case.

18. In the light of the foregoing, the Court considers that the matter has been resolved between the parties within the meaning of Article 37 § 1 (b) of the Convention and that respect for human rights as defined in the Convention and its Protocols does not require it to continue the examination of the application under Article 37 § 1 in fine. In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 23 July 2015.

Fatoş Aracı
Deputy Registrar

Paul Mahoney
President